

CHARLES LAGUNA v. CORBIN CLOUGH, et al.

22CV46348

DEFENDANT 'S MOTION FOR ORDER DISMISSING ENTIRE ACTION

This is a quiet title and specific performance action involving an alleged oral promise to make a testamentary gift of real property. There are related coordinated actions (see 22UD13972 and 22PR8530). Before the Court is a Motion to Dismiss after the Court sustained a demurrer to the operative complaint, Order filed 10/17/23, providing plaintiff with thirty (30) days leave to amend. No amended pleading was filed. Plaintiff has not filed an Opposition to Motion.

California Code of Civil Procedure § 581 provides in pertinent part:

* * *

(f) The court may dismiss the complaint as to that defendant when:

...

(2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.

* * *

Upon review of moving documents, and the court file, the Motion for Order Dismissing Entire Action is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

JOHN LOUDERMILK v. DOLLAR GENERAL

21CV45482

PLAINTIFF'S MOTION TO COMPEL WRITTEN DISCOVERY

This action arises from an alleged breach of duty to provide safe premises resulting in a slip and fall injury to plaintiff John Loudermilk.

On July 19, 2023, plaintiff propounded the following discovery on defendant Dolgen California, LLC, (erroneously named as "Dollar General"): form interrogatories; request for production of documents; and special interrogatories, sets one. No response has been provided. No opposition to the Motion to Compel was filed.

The Motion to Compel is **GRANTED**. Defendant Dolgen California, LLC, is to produce complete verified answers, without objection, and produce all responsive documents in its care, custody or control, to plaintiff's form interrogatories, request for production, and special interrogatories, sets one, by November 17, 2023.

As this motion was not opposed, no monetary sanctions are awarded.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to submit a formal Order in conformity with this Ruling.